

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Curry Lee Walker

Secure Party Creditor/Plaintiff
Affiant

Affidavit
of
Complaint

- against -

Arresting Officer, Judges, Lawyer, DA's
Defendants

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SEP - 1 P 4: 29

I Parties

Plaintiff Curry Lee Walker resides at
Rikers Island, GEORGE MOTCHAN DETENTION
CENTER (C-73) 15-15 Hazen street, East
Elmhurst, New York 11370

Defendant MATTHEW FORTE TAX# 944569
Command 544, residence not available at
this time

Defendant Judge (Acting) Jill Konvisor
resides at 100 Centre street, New York, New
York 10013 Part 31

Certified mail number 7003 1010 0002 6306 4124

Defendant Judge (Administrator) Micheal Obus resides at 100 Centre Street part 51, New York, New York 10013

Defendant District Attorney Mary Weisberger resides at 100 Centre Street New York, New York 10013

Defendant District Attorney Richard Kneally resides at 100 Centre Street, New York, New York 10013

Defendant Lawyer Benjamin West resides at the Legal Aide Society 49 Thomas Street New York, New York 100

That I hold all Public Officials to their official Public Oath of Office to uphold the Constitution, sworn to duties, as well as protect my Due Process of Law Rights and Equal Protection of the Law, that the essence of the 5th Amendment guarantees, That no person shall be deprived of Life, Liberty, or property without Due Process of Law. Also see 13th Amendment. See: Bartely v United States (1913), Hagen v Lavine, 415 N.S. 533

II. **ALL PARTIES** are hereby advised that the Federal District Court has original "Subject Matter" jurisdiction where federal Questions and/or Diversity of Citizenship are at issue. The primary issue is the constitutional deprivation of the Sovereign's [Secured Party/Holder in Due Course] Rights, pursuant to 42 U.S.C. 1983 and 18 U.S.C. 241 and 242. The Respondents/Defendants are reminded of their oaths of performance of which are secured by their Official Bond/Surety; and therefore, government selected/appointed officials have a duty to take the appropriate action [42 U.S.C. 1986]. This Complaint for damages is enforceable.

III. **STATEMENT of CLAIM.** I am the Secure Party Creditor incarcerated for the surety of the three said accounts that are considered intellectual property in violation of the true essence of the fifth amendment to the constitution of the United States of America. I AM[?] sentient being who are secured by the Uniform Commercial Code under the filing information 201501260043415. The plaintiff has been duped by the defendants to voluntarily

in 2009 to be the surety by a guilty plea void of lawful jurisdiction, instead of settling the account as the beneficiary oppose to the trustee of said Trust that were set up as there name in association with House Joint Resolution 192 of 1933 and 48 Stat 112. CURRY WALKER is merely a corporation used to coax people into filing the for profit prison system that is a private own entity

The fraud does not only consist of an unconscionable contract enforced by members of the Bar Association which is not an American constitutionally bound entity but, merely a foreign entity who are enforcing foreign laws unbeknownst to people under 44.01 of the federal rules of civil procedure which sums up them to be actors in the court.

The jurisdiction is null and void that was enforced for a conviction in 2009 and duress in 2015, but I the plaintiff am not a member of the united states military nor are accusations (constitutionally bound) or were

committed at sea for that matter to be subjected to maritime jurisdiction under statutory law which are solely for corporation that this flesh and blood man born to the Walker family is not.

The United States Constitution is the Supreme Law of the Land under article 6 of the Bill of Rights and any law that is repugnant to the constitution is null and void of law **MARBURY V MADISON (1803)**. So the very fraudulent means of which I was arrested and the contract should have all been dismissed.

Defendant Jill KONVISOR is doing business as a designated Acting SUPREME COURT Judge-Justice, but after a thorough investigation she does not satisfy the requirements of 5 U.S.C. 3331, 28 U.S.C. 543, and 5 U.S.C. 1983 because she failed to reveal her Oath of Office nor can one obtain such oath with the post master seal affixed to his autographed stamp in the **SECRETARY OF STATE** for him/her to operate as a judge in a constitutionally

bound capacity. She may have an oath to operate as an attorney (foreign lawyer) one who attorns for the BRITISH ACCREDITATION REGISTRY who sole obligation is to create bonds for the UNITED STATES SUPREME COURT to purchase and to turn ordinary citizens into sureties for the conglomerates.

There is no doubt that a crime has been committed by the parties other than the one who is deprived of liberty without Due Process of the law but by the defendants who culpability is blatantly manifest by the status quo of the plaintiff who are not bound by oath to protect the same rights that the defendants are violating at the same token. The proof is obvious as I indulge in substantial law as should known to all sworn officials.

This is how the courts enforce unconscionable contracts by way of TREASON, malfeasance, false, and misleading statements, (Be advised I am excluding the correct sentence structure communication parse syntax

grammar claim from the complaint due to the duration of time to decipher every adverb verb contract that modified the words in the original contracts);

What they're doing in these courts is all about Bonds. When you go into the courtroom after one is arrested, they use two different sets of Bonds. They are filling out a "Bid Bond" unbeknownst to the accused, once a person is arrested. The United States District Court uses 273, 274, and 275 "Standard Form." Standard Form 273, Standard Form 274, Standard Form 275. This is the United States District Court.

There is another set of Bonds they pull out by GSA - General Service Administration. GSA Form SF24 is the "Bid Bond" but they never disclose this to the accused, everyone should have a copy when they conduct these clandestine proceedings. The "Performance Bond" is SF25. The "Payment Bond" is SF25A and put out by the GSA.

Whats going on in the courtroom is that they are suing people for a debt collection. If you look at these Bonds, everyone of these Bonds: The "Bid Bond", the "Performance Bond" and the "Payment Bond", all have a "PENAL SUM" attached to it. The reason for the "Penal Sum" is if you dont pay the debt, you go into "Default Judgement."

That is what I Curry Walker is sitting on Riker's Island for, and being forced under extreme duress to become surety for the estate that I have a lawful right to discharge and settle the accounts in accordance to HJR 192 of 1933 and 48 stat 112 which make the fraud the defendants created indisputable. Since my arrest I have been held basically to the suit is completed or the Default Judgement or duress is enforced. The attorney is there to create a smoke screen, which is surely what is occurring in this unfortunate fraudulent matter.

What attorneys have been trained to do is lead you into dishonor or Default Judgement. Then the courts put into prison then they

Sell your "Default Judgement."

The U.S. District Court buys all of these State Court Judgements. There about 300 "re-insurance" companies that buy bonds. They are all "insurance" companies. They are the people that are buying bonds. And they cannot buy these bonds unless they are Certified by the Secretary of the Treasury.

What are they doing with these Bonds? They have regulations governing these Bonds - There are regulations 2,000 governing these Bonds. Commercial Paper; Negotiable Instruments - any thing you put your signature on is a negotiable instruments under the Uniform Commercial Code which is Lex Mercantorum. It's Mercantile Civil Law.

The reason they use Lex Mercantorum in the court room is because everyone is making an appearance are Merchant's at Law, and Merchant's at Law is anyone who holds themselves out to be an "expert." This is also why they are not telling anyone what is really going on in the courtroom. We are presumed to

Know this stuff because we are presumed to know this stuff because we hold ourselves out to be an expert by using commercial paper every day. The Maxims state that ignorance of the law is not an excuse and the courts take advantage of this.

Every time we put our signature on a piece of paper, we are creating a Negotiable Instrument. Some are Non-Negotiable and some are Negotiable. Every time we endorse something, we are acting as an accommodation party or an accommodation maker under UCC 3-419.

An accommodation party is anyone who loans their signature to another party. In UCC 3-419, it tells you what an accommodation maker is and what an accommodation party is. When you loan your signature to them, they can re-write your signature on any document they want and that's exactly what they are doing.

What the Federal Courts are doing (with all due respect) is they are buying these state court default judgements, 'called criminal cases' to cover

up what they are doing. Actually they are civil cases.

"The money of the Sovereign is his credit, he is the wealth for which no substance on earth can establish value for."

All cases in law, equity, admiralty, or maritime are now classified as a "civil action". Civil maritime and admiralty actions require a contract between the plaintiff and defendant for the plaintiff to have something and standing to sue. For the plaintiff to have standing and for the court to have jurisdiction of the subject matter.

Federal Rules of Civil Procedure, (FRCP) Rule 1 provides that: These rule govern the procedure in the United States district courts in all suits of a civil nature whether cognizable as cases at law or in equity or in admiralty with the exceptions stated in rule 81. Rule 2 provides that: There shall be one form of action to be known as "civil action." Rule 9 provides in part: If the claim is cognizable only in admiralty, it is an admiralty or maritime claim

For those purposes whether you warn them so identified or not. Rule 38(e) provides that: These rules shall not be construed to create a right to a trial by jury of the issues in an admiralty or maritime claim within the meaning of rule(9)(h).

If you read "Clerk's Praxis," you will find that what they call "Criminal" is all civil, they just call it criminal to cover up what they are doing. If you don't pay the debt you go to prison, bottom line and this premise is treason in every aspect the constitution forbids.

These actions also fall in compliance with REIT= Real Estate Investment Trust or PZN which means Prison Trust?! Prisoners are real estate?! They own all real estate because they hold the bonds on them. Curry Walker haven't redeemed his bond so they didn't close my account.

Afterwards, a contractor comes in or any corporation could come in and tender a Bid Bond to the U.S. District Court and they buy up these court judgements and anytime you issue

a Bid Bond there has to be a reinsure. So they get a reinsurance company to come in and act as Surety for the Bid Bond, then they bring in a Performance Bond. All of these Bonds; Bid, Payment, and Performance are all Surety Bonds, anytime you issue a Bid Bond it has to have a Surety guaranteeing or reinsuring the Bid Bond via issuing a Performance Bond.

Then they get an underwriter and that would be either an Investment Broker or an Investment Banker. They come in and underwrite the Performance Bond which is reinsuring the Bid Bond. The underwriter takes the 3 Bonds and pools them and creates what is known as Mortgaged Backed Securities. When you pool these MBS, they are called Bonds and are sold to a company called TBA, which is the Bond Market Association.

These converted Bonds, now MBS are investment securities and being sold on the International level. CCA is one of the tickers on New York Stock Exchange. Others include; CWX, CWD, and CWG. When it goes to Frankfurt = CWG, when it goes to Berlin = CWD and so on.

Everything is commercial 72.11 CFR says that all crimes are commercial. If you read carefully to all that it is listed, Thus leaving I the plaintiff Curry Walker funding the whole scheme simply because I was forced into duress of Default Judgement when appearing in court and failed to redeem the Bond unbeknownst to the Secure Party Creditor, becoming a major victim of heinous scheme perpetrated by the defendants.

This is why no one really win in court; cause they don't redeem the Bond and they defendants do not offer the bond for redemption. The people are the Principal upon which all money circulates, but of course I do want to raise a brow or start a controversy with the court about this.

The courts are drafting people for performance, So, anytime the court asks one to do something they are drafting one for performance and if one do not perform, you get into dishonor by non acceptance.

They are making a formal presentment under 3-501 of the UCC so they can charge you and use the "word" "charge". They use the same commercial words on indictments, information and complaint.

WHY THE UNITED STATES OF AMERICA IS A CORPORATION...

United States Congressional Record March 17th 1993 volume number 33, page H-1303
Speaker-Senator James Traflicant, Jr. (OH10) addressing the House.

"Mr. Speaker, we are here now in chapter 11. Members of Congress are official trustees presiding over the greatest reorganization of any Bankruptcy entity in world history, the United States Government. We are setting forth hopefully, a blueprint for our future. There are some who say it is a Coroner's report that will lead to our demise.

It is an established fact that the United States Federal Government has been dissolved by the Emergency Banking Act, March 9th, 1933, 48 stat. 1, Public Law 89-719; declared by President Roosevelt, being bankrupt and insolvent.

House Joint Resolution 192, 73rd Congress Session June 5th, 1933- Joint Resolution To Suspend The Gold Standard and Abrogate The Gold Clause dissolved the Sovereign Authority of the United States and the official capacities of all United States Governmental Offices, Officers, and Departments and is further evidence that the United States Federal Government exist today only in name.

The receivers of the United States Bankruptcy are the International Bankers, via the United Nations, the World Bank and the International Monetary Fund. All United States Offices, Officials, and Departments are now operating within a de facto status in name only under Emergency War Powers. With the Constitutional Republican Form of

Government now dissolved, the receivers of the Bankruptcy have adopted a new form of government for the United States. This new form of government is known as a Democracy, being an established Socialist/Communist order under a new governor for America. This act was instituted and established by transferring and/or placing the Office of the Secretary of Treasury to that of the Governor of the International Monetary Fund. Public Law 94-564, page 8, Section H.R. 13955 reads in part: "The United States Secretary of Treasury receives no compensation for representing the United States."

(Notice only "persons" can commit these state legislature-created crimes. According to the government, a crime is an offense against the "state". (The state is a fiction. A construct of the mind.) The government can not actually make a real claim against the plaintiff, the living sentient being, so they call forth the strawman. This is why when I went to court, the first thing they did was call the capital lettered name. An attempt to get ~~XXXXXX~~ I the true and living to represent the Strawman.

All the courts are about these days is collecting revenue. Their first duty is essentially to gather as much money as they can from people, to offset the national debt.)

The BAR ASSOCIATION

THE BARCARD AS PER THE UNITED STATES SUPREME COURT;

"The practice of Law CAN NOT be licensed by any state/State" (Schware v Board of Examiners, 353 U.S. 238, 239)

"The practice of law is AN OCCUPATION OF COMMON RIGHT" (Sims v Aherns, 271 S.W. 720 (1925))

The "Certificate" from the State Supreme Court: ONLY authorizes, to practice law "IN COURTS" as a member of the STATE JUDICIAL BRANCH OF GOVERNMENT. Can ONLY represent WARDS OF THE COURT, INFANTS, PERSONS OF UNSOUND MIND (SEE CORPUS JURIS SECUNDUM, VOLUME 7, Section 4.)

"CERTIFICATE" IS NOT A LICENSE to practice Law AS AN OCCUPATION, nor to do BUSINESS AS A LAW FIRM!!

The "STATE BAR" CARD IS NOT A LICENSE!!! it is a "UNION DUES CARD." The "BAR" is a "PROFESSIONAL ASSOCIATION."

1 Like the Actors Union, Painters Union, etc.

Its a NON-GOVERNMENTAL ASSOCIATION
PRIVATE

The State Bar is; an Unconstitutional Monopoly

AN ILLEGAL and CRIMINAL ENTERPRISE
(with all due respect)

Voilates Article 2, section 1, Seperation of Powers Clause of the United States Constitution.

So the relevant question now is, who is claiming to be the beneficiary of the CURRY WALKER accounts? When in fact the filing acknowledgement numbers aforementioned in this complaint characterizes Curry Lee: Walker 201501260043415 as the sole beneficiary and the COURT coax the sovereign to be the TRUSTEE in violation to the provisions of the Uniform Commercial Code, the organic united states constitution where the 13th amendment is valid Law Barring all attorney's especially British Accreditation Registry from being employed in any facets of government, the defendants are guilty of fraud, stealing from a private trust, stealing intellectual properties of which I have asked Preet Bahara and IRS and other agencies to investigate.

Under article 44.1 of federal rules of civil procedure this can be construed as theater, only a show that is meant to appear to be reality while the perpetrators commit many levels of fraud, malfeasance, Misappropriation of funds, treasons and a series of other acts

that violate the citizens unalienable rights to obtain their goals at the expense of innocent people who are duped by the strawman corporations name sounding similar to what they are called by their families, in conjunction with their parents being duped into signing an unconscionable contract known as the birth certificate that the insolvent de facto government attach to ordinary citizens while the law dictates the implementations of codes, rules, regulations, and statutes are nothing more than ex post facto laws absolutely forbidden by the united states Constitution (article one section nine) and the state constitutions to which the defendants swore oath to uphold. It is Gross Negligence to fail to distinguish between a statute and a law.

"No state shall convert a liberty into a privilege, license it, or attach a fee to it." *Murdock v Peon*, 319 US 105 (1943)

"If the state converts a liberty into a privilege the citizen can engage in the right with impunity" *Shuttlesworth v Birmingham*, 373 US 262 (1963)

"The Constitution of these United States is the supreme law of the land. Any law that is repugnant to the constitution is null and void of law." *Marbury v Madison*, 5 US 137 (1803) *supra*

"Qualified immunity defense fails if public officer violates clearly established right because a reasonably competent official should know the law governing his conduct" *Jones v Counce* 7-F3d-1359-8th Cir (1993); *Benitez v Wolff* 985-F3d-662 2nd Cir (1993)

"Where an individual is detained, without a warrant and without having committed a crime, the detention is a false arrest and false imprisonment." **Damages Awarded:** *Trezevant v City of Tampa* 241 F2d. 336 (11th Cir 1984)
Motorist illegally held for 23 minutes in a traffic charge was awarded \$25,000 in damages